

25NWCV00271 25NWCV00271

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C08%2F06%2F2026

Source SHA-256: dd529047d727c93229ae996fd69dfd2a381adfe0ef2691a1a1aaa6f9f45d07ac

Case Number: 25NWCV00271 Hearing Date: August 6, 2026 Dept: P

MARTINEZ-CASTILLO

v. FIGUEROA

CASE NO.: 25NWCV00271

HEARING: 08/06/2026 @ 9:30 AM

#11

TENTATIVE ORDER

Defendant Steve Figueroa's motion set aside default is

CONTINUED to Tuesday, August 25, 2026 at 9:30 AM in Dept. P only as to the new arguments raised in reply. Plaintiff's sur-reply is due by August 17, 2026.

Moving party to give notice.

Defendant Steve Figueroa (Defendant) moves for relief from the default entered against him.

Background

On January 22, 2025, Plaintiff Armando Martinez-Castillo

(Plaintiff) filed this personal injury action against Defendant and Does 1

through 50. The form complaint alleges that Plaintiff sustained injuries on

August 3, 2024 while hired to work at Defendant's property located at 11234

Cullman Ave., Whittier, CA 90603 after Defendant supplied a faulty and/or

broken ladder to Plaintiff. The complaint asserts two causes of action: (1)

general negligence and (2) premises liability.

On April 21, 2025, Plaintiff filed a request for Entry of Default against Defendant and Default was entered against Defendant on the same date (Default).

Legal Standard

Code of Civil Procedure section 473, subdivision (b) provides for discretionary and mandatory relief for mistake, inadvertence, surprise, or excusable neglect.

Discretionary relief is available to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) An application for discretionary relief “shall be accompanied by a copy of the answer or other pleading proposed to be filed...and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) Mandatory relief is available “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect...unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd. (b).)

“[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-82, citations omitted.)

Discussion

Defendant moves to set aside the Default entered against him on April 21, 2025. Defendant moves for discretionary relief or, alternatively, mandatory relief under Code of Civil Procedure section 473, subdivision (b).

Defendant argues that relief is warranted because the failure to not move for timely relief was based on (1) defense counsel's

mistake, inadvertence, surprise, or neglect, (2) it is timely under the circumstances, and (3) it is accompanied by a proposed answer.

Defendant puts forth the declaration of defense counsel, Albert Robles (Mr. Robles). Mr. Robles states that the failure to not promptly move for relief after failing to timely answer is “the result of my mistake, inadvertence, surprise, or neglect, due to my reliance on the various representations by Plaintiff of being open to setting aside the default via stipulation; because but-for these (mis)representations I would have immediately filed the CCP §473(b) Motion.” (Robles Decl., ¶ 4.)

In opposition, Plaintiff argues that relief under Code of Civil Procedure section 473, subdivision (b) is jurisdictionally barred as untimely as Defendant moved for this relief eleven months after Entry of Default.

As to discretionary relief, this motion is untimely. A motion for relief under Code of Civil Procedure section 473, subdivision (b) “shall be made within a reasonable time, in no case exceeding six months” after entry of default. (Code Civ. Proc., § 473, subd. (b).) “The six-month period for granting relief under section 473, subdivision (b), ‘runs from entry of default, not entry of judgment.’” (Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 39.)

Here, the Court agrees that discretionary relief is not available since it has been longer than six months since Entry of Default. As argued by Plaintiff, Defendant does not put forth authorities showing that negotiations regarding stipulations can toll this deadline. Defendant’s evidence shows that Plaintiff requested defense counsel call Plaintiff regarding setting aside the Default on August 15, 2025. (Robles Decl., Exh. 2.) There is no explanation why defense counsel did not then take action prior to November of 2025, after the deadline to move for relief passed in October of 2025. Moreover, this motion seeks relief from the six-month deadline, not the failure to file an answer. This is improper. (See Arambula v. Union Carbide Corp. (2005) 128 Cal.App.4th 333, 345 [“a court has no authority under section 473, subdivision (b), to excuse a party’s noncompliance with the six-month time limit.”].)

As to mandatory relief, the Court notes that relief is not available as to the Default and relief is premature as to any default judgment. “Under the discretionary relief

provision (§ 473(b)), a motion to set aside a default judgment must be made no more than 'six months' after the default—not the default judgment—is entered [citation.] This is in contrast to the mandatory relief provision (§ 473(b)), which requires the underlying default to be vacated if a motion to vacate the default judgment is filed within six months of the date the default judgment was entered. (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 59–60, citing *Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 296–97.) Therefore, at this time, mandatory relief is not available.

For the first time on reply, Defendant argues that the Court should grant relief pursuant to its inherent authority. “[A] trial court may still vacate a default on equitable grounds even if statutory relief is unavailable.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) Courts have inherent equity powers to grant relief from a default or default judgment procured by extrinsic fraud or mistake. (*Aheroni v. Maxwell* (1988) 205 Cal.App.3d 284, 290.) “A party who seeks to have his default vacated under the court’s equity power must make a stronger showing than is necessary to obtain relief under section 473.” (*Id.* at p. 291.) “ ‘To set aside a judgment based upon extrinsic mistake one must satisfy three elements. First, the defaulted party must demonstrate that it has a meritorious case. Second[], party seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action. Last [], the moving party must demonstrate diligence in seeking to set aside the default once ... discovered.’ ” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982.)

As this argument is raised for the first time in reply, the Court finds a continuance warranted to allow Plaintiff the opportunity to file a sur-reply directed toward the new arguments.

Accordingly, Defendant’s motion to set aside default is
CONTINUED to Tuesday, August 25, 2026 at 9:30 AM in Dept. P only as to the new arguments raised in reply. Plaintiff’s sur-reply is due by August 17, 2026.

Defendant’s motion to set aside is DENIED as to
discretionary and mandatory relief under Code of Civil Procedure section 473, subdivision (b).